

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOAI BAO THUC NGUYEN,

Petitioner

VS.

TRUONG XUAN THI PHAM,

Respondent

) Case Number: FDI-15-784944

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Hoai Bao Thuc Nguyen (Husband) and Truong Xuan Thi Pham (Wife).
- 2) On December 15, 2015, Husband filed a Petition for Dissolution of Marriage, alleging a long-term marriage from February 24, 1981 – July of 2004 for a total duration of 23 years and 4 months.
- 3) On August 31, 2016, Wife filed a Response and Request for Dissolution of Marriage wherein she agreed with the total duration of marriage as stated in the underlying petition.
- 4) On September 9, 2017, the Court issued a pendente lite spousal support order in the amount of \$8000.00 per month, payable by Husband to Wife based upon their agreement. This order was effective the filing date of Wife's Request for Order (i.e., June 22, 2017). See Findings and Order After Hearing filed October 17, 2017.
- 5) On October 17, 2017, the Court entered a Status Only Judgment terminating the parties' marital status.

- 6) On July 10, 2023, Wife filed an Ex Parte Application to Issue an Earnings Assignment Order, alleging Husband owed \$87,900.00 in arrears (not including interest) from the pendente lite spousal support order of \$8000.00 per month payable to Wife by Husband.
- 7) On January 23, 2026, Husband filed a Request for Order seeking modification of spousal support to \$0.00 per month, citing retirement from employment. The matter was set for hearing on April 7, 2026.
- 8) On February 2, 2026, Husband filed a Proof of Service indicating his Request for Order was served on Respondent by personal service on January 29, 2026.
- 9) On April 7, 2026, the Court continued the matter to June 2, 2026, as the Court did not have enough evidence to modify support because Husband failed to file the required Income and Expense Declaration along with his request. Husband was ordered to file and serve an Income and Expense Declaration at least 9 days prior to the next hearing.
- 10) On May 27, 2026, Wife filed a Responsive Declaration requesting the Court maintain the existing order pending evidentiary hearing or, in the alternative, an order for the full amount of arrears to be paid.
- 11) On May 27, 2026, Wife filed Declaration of William Essig, CPA Re: Spousal Support Arrearage and Interest Thereon Owed from Petitioner to Respondent. The declaration states that Husband owes Wife \$135,900.00 in unpaid spousal support and \$50,626.68 in legal interest.

B. Findings and Order

- 1) Husband's request to modify the existing spousal support order is DENIED without prejudice.
- 2) California Rules of Court, Rule 5.20 requires a current Income and Expense Declaration be filed and served along with any Request for Order concerning spousal support.
- 3) The Court previously continued this matter to June 2, 2026 to allow Husband to file a current Income and Expense Declaration 9 days prior to the hearing (i.e., May 25, 2026).
- 4) Husband did not file a current Income and Expense Declaration as ordered.
- 5) In addition, the Court finds Husband comes to Court with "unclean hands" and admonishes Husband that Wife has raised the "disentitlement doctrine."

- 1 6) Should Husband properly refile a Request for Order, which includes all the required supporting
2 documentation, the Court will seriously consider whether Husband can seek any such relief while
3 failing to comply with the Court's existing spousal support order.
- 4 7) The Court will prepare the Findings and Order After Hearing.